

Superior Court of California, County of Tuolumne

Consolidated Calendar

Hon: Hallie Gorman Campbell

Department 2

June 3, 2026

8:30 am

DA Case #

Date Filed

2 CV66458

Veronica Aguayo vs. BestNest Management LLC

09/20/2024

Veronica Aguayo

Attorney: Larry Lee

BestNest Management LLC

Attorney: Matthew
Soleimanpour

BestNest Management LLC

Attorney: Bradley Beherns

Motion Hearing - Attorney Withdrawal

09/20/2024 Complaint

File Tracking

08/08/2025 High Density

This is a wage/hour dispute. The Commissioner just recently denied (without prejudice) a motion to withdraw the dispute from arbitration, with certain appropriate conditions. In the meanwhile, defense counsel has run a motion to withdraw.

An attorney may withdraw as counsel of record if the client breaches the agreement to pay fees, insists on pursuing invalid claims or an illegal course of conduct, or when other conduct by the client renders it unreasonably difficult for the attorney to do his job, including when there is a breakdown in the attorney-client relationship. If the attorney does not have the client's consent, he or she must proceed by way of noticed motion consistent with CCP §§ 284, 1005, and CRC 3.1362. Assuming proper service and notice, relief turns on whether there are reasonable grounds for granting the request, and if doing so will prejudice the client. Courts have a duty of inquiry regarding the grounds for the motion. Counsel has a corresponding duty to respond and to describe the general nature of the issue, within the confines of any privilege. The degree of detail is on a sliding scale against counsel's candor and trustworthiness. See *Flake v. Neumiller & Beardslee* (2017) 9 Cal.App.5th 223, 230; *Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1134-1136; *Aceves v. Superior Court* (1996) 51 Cal.App.4th 584, 592-593. An otherwise proper motion to withdraw may be denied when it is reasonably foreseeable that the client would suffer prejudice, such as when the unrepresented client would be unable to fairly respond to dispositive motions. See *Mossanen v. Monfared* (2000) 77 Cal.App.4th 1402, 1409.

It is unclear from the moving papers whether the client has been provided accurate information as to the date/time for when this motion to withdraw will be heard, but otherwise the motion is sufficiently framed provided that defense counsel first serve a corrected MC-053 on the client showing the due dates set forth in the Commissioner's 05/05/2025 ruling regarding the arbitral fees. The withdrawal will not be deemed effective until after proof of service on the client is complete, and the time period set forth in said ruling has passed. With that, defense counsel's motion to withdraw will be granted.